

Before You Walk Into a Property Protest

A plain language, cup-of-coffee-length guide for turning a property valuation protest into a clear, evidence-based request.

GAGE COUNTY

PROPERTY ASSESSMENT

PROPERTY PROTEST



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About a 10-minute read

IN THE HEARING ROOM

The pattern shows up quickly

KEY IDEA

Facts become evidence when someone else can verify them.

Spend a day observing property protest hearings and a pattern begins to emerge.

Homeowners come forward one after another. Most sincerely believe something about their assessment is wrong.

Then the Board asks the practical question beneath nearly every hearing:

What can we verify?

That is where many protests lose their footing. A homeowner may be right that something feels off, but without photographs, measurements, property records, comparable properties, or other supporting evidence, the Board has little it can act on.

THE DISCONNECT

HOMEOWNER THINKS

My value is too high.

BOARD NEEDS

What should change?

EVIDENCE-SUPPORTED REQUEST

Here is the proof. Here is the correction.

Don't walk into a protest asking for justice. Walk in asking for the record to be corrected.

That is a narrower request. It is also a stronger one. A property protest is not mainly about proving that taxes are too high. It is about showing, with specific evidence, that the property record or assessed value should be corrected.

BEFORE YOU BEGIN

The whole process in four moves

1 FIND

2-3 good comparable properties

2 COMPARE

the property records

3 DOCUMENT

the specific difference

4 REQUEST

one clear correction

SOURCE

Nebraska protest procedure authorities

Assessment date, filing window, county board review, and real property regulations

Used to anchor the protest preparation process in Nebraska's assessment and equalization framework.

FINDING THE DISCONNECT

Why do sincere protests fail?

WHY IT MATTERS

Sincerity explains concern. Evidence supports correction.

Usually not because the homeowner is careless. More often, the protest asks the Board to solve the wrong problem.

"Just look at my house" may be an honest reaction. So is "there is no way it is worth that." But a hearing cannot inspect a feeling. It needs something it can compare, measure, confirm, or correct.

SINCERITY IS NOT THE SAME THING AS USABLE EVIDENCE

Hard for the Board to act on

- My house isn't worth this much.
- This will make my taxes increase.
- Can someone make this make sense?

Easier for the Board to evaluate

- My record lists two fireplaces, but I have one.
- My finished basement area appears overstated.
- My condition rating appears inconsistent with comparable records.

This is where the homeowner's role changes. You do not need to become an appraiser. You need to become a good witness. Witnesses observe, document, and explain what their evidence shows.

SOURCE

Nebraska protest procedure and actual-value framework

Protest procedure, Title 350 guidance, and actual-value law

Used to explain why a protest needs evidence tied to value, record accuracy, or equalization rather than frustration with taxes alone.

NARROWING THE QUESTION

What is the Board actually deciding?

The practical question is whether the requested correction is supported.

The Board is not there to decide whether a tax bill feels heavy. It is not there to debate public budgets. It is not there to punish or defend the assessor.

BOARD REVIEW

The Board's Practical Question

Is there support for the requested correction?

YES

What correction?

**Does the correction maintain
equalization?**

NO

Current record likely remains.



This is a cognitive aid, not a guarantee of outcome. The Board still controls the decision under the applicable process.

Those two questions keep the hearing focused on facts that can be checked instead of opinions that cannot be resolved. A good witness does not say, "This is unfair." A good witness says, "My property record shows two fireplaces. My home has one."

SOURCE

Nebraska uniformity and county board authority

Constitutional uniformity requirement and county board protest statutes

Used to show that the board's job is to review the parcel's assessed value and equalized treatment, not to rewrite taxing-subdivision budgets.

FINDING GOOD COMPARABLES

What makes a comparable useful?

A comparable property is not just a nearby house with a lower value. The better question is whether that home would have genuinely competed with yours in the marketplace.

COMPARABLE PROPERTY SCORECARD

A good comp is similar in

- location
- style
- age
- size
- condition
- quality
- lot size
- major features

Weak comp signals

- very different size
- different property type
- major improvements yours does not have
- different market area
- unusual sale conditions, if known

Three strong comparables are usually more persuasive than fifteen weak ones. A short set of good matches lets the Board see the pattern. A long set of loose matches often makes the real point harder to find.

Use the sales map or sales search to find candidates (link below). Then slow down. Pull the property record cards. The sale price may get your attention, but the record facts tell you whether the comparison belongs in the packet.

SOURCE

Actual-value law and appraisal guidance

Nebraska actual-value definition and IAAO sales-comparison guidance

Used to define why comparable properties should be similar enough to support a value or equalization argument.

VERIFYING THE RECORD

How does the property record shape the current assessment?

The record is where the evidence begins.

The current assessment begins with the facts in the record.

The current assessed value reflects the information presently available about your property.



THE CURRENT ASSESSMENT IS BUILT FROM MANY SMALLER PIECES OF INFORMATION.

Living area

Quality

Condition

Lot size

Garage

Basement

Fireplaces

Outbuildings

Comparable sales

Land characteristics

The property record is often the most useful place to begin because it holds many of the facts used during valuation. Compare your record with the records for your comparables. Do not stop at the total assessed value. Ask which record facts help explain how each value was assembled.

Maybe your home and a comparable are similar, but your record shows more finished basement. Maybe the comparable has a larger garage. Maybe your condition rating is higher even though the homes appear similar. Those differences do not automatically change the value, but they give the Board specific questions it can review.



A SIMPLIFIED RECORD CARD: WHERE TO LOOK FIRST

Living area

Compare this

Condition

Compare this

Quality

Compare this

Basement finish

Check this

Garage

Measure if wrong

Fireplaces

Photograph if wrong

Outbuildings

Photograph if missing

Land size

Match this to the request



But be careful: the Board cannot fix one error by making another. If a comparable looks like a good match but its record is wrong, the answer may not be to change your value to match that mistake. The better question may be: which record is incorrect, and what evidence shows the correction?

SOURCE

Nebraska property record requirements

Title 350 property record provisions and assessment record statutes

Used to explain why the property record card is the first evidence layer to inspect before making a correction request.

CONNECTING PROOF TO RELIEF

How do you turn evidence into one correction?

Keep the path short. What you noticed should connect directly to what the record says and what you are asking to correct.



WHAT YOU NOTICED

Photos show sealed fireplace

Your evidence or observation



WHAT THE RECORD SAYS

Record lists functional fireplace

What the property record shows



WHAT TO ASK FOR

Request fireplace correction

The correction you're requesting



WHAT YOU NOTICED

Measurements show smaller living area

Your evidence or observation



WHAT THE RECORD SAYS

Record shows larger square footage

What the property record shows



WHAT TO ASK FOR

Request square footage review

The correction you're requesting



WHAT YOU NOTICED

Comparable records show similar homes rated Average

Your evidence or observation



WHAT THE RECORD SAYS

Subject is rated Good

What the property record shows



WHAT TO ASK FOR

Request condition adjustment

The correction you're requesting



WHAT YOU NOTICED

Basement is only partly finished

Your evidence or observation



WHAT THE RECORD SAYS

Record lists full finish

What the property record shows



WHAT TO ASK FOR

Request basement finish correction

The correction you're requesting



WHAT YOU NOTICED

Old shed was removed

Your evidence or observation



WHAT THE RECORD SAYS

Record still lists outbuilding

What the property record shows



WHAT TO ASK FOR

Request outbuilding removal

The correction you're requesting



WHAT YOU NOTICED

Photos show a different major feature

Your evidence or observation



WHAT THE RECORD SAYS

Record describes the wrong feature, size, or type

What the property record shows



WHAT TO ASK FOR

Request physical-characteristic correction

The correction you're requesting

The important part is the connection. A photo by itself is helpful. A record card by itself is helpful. Together, they become evidence of a specific correction.

SOURCE

Nebraska protest evidence procedure

County board protest statute and Title 350 protest procedures

Used to support the evidence-to-request structure shown in the translation matrix.

BUILDING THE PACKET

What should the packet say?

You do not need a complicated argument. You need a clean sequence the Board can follow.

WHAT APPEARS INCORRECT?

Name the record fact or value issue as plainly as possible.

WHAT EVIDENCE SUPPORTS THAT?

Attach the photo, measurement, estimate, record card, sale record, or comparable record that helps verify it.

WHAT CORRECTION ARE YOU REQUESTING?

Ask for the specific record or value adjustment you want the Board to consider.

SOURCE

Protest procedure and appraisal practice guidance

Title 350 protest procedures and IAAO appraisal guidance

Used to explain why organized exhibits should connect observations, records, and requested corrections.

A clear protest is not louder. It is easier to verify.

How do you say it out loud?

You do not need to sound formal. Plain speech usually works better. You are simply walking the Board from the record to the evidence to the request.



WHAT TO SAY AT THE HEARING

The property record shows _____.

My evidence shows _____.

The comparable records show _____.

I am requesting _____.

That gives the Board something to work with. They may ask follow-up questions, and it does not guarantee an outcome, but it puts the record, the evidence, and the request in the same place. It also keeps you from drifting into frustration when the strongest thing you can offer is a specific fact the Board can evaluate.

GATHERING YOUR MATERIALS

Here are the typical tools for checking the record, finding comparable sales, and filing the official protest form.



Gage County GIS / Property Record Lookup

(<https://report.gworks.com/report.ashx?county=gage&type=assessor>)

Find the property record card for your parcel and for any comparable properties you plan to discuss.



Gage County Sales Comparison Map

(<https://experience.arcgis.com/experience/67492767fb8d49a8b321d14022d24e31>)

Start here when looking for recent sales that may have competed with your property in the market.



Nebraska Property Valuation Protest Form 422

(https://revenue.nebraska.gov/sites/default/files/document/pad/form422_Property_Valuation_Protest.pdf)

Use the official Nebraska form and confirm the deadline, signature, and filing requirements with the county.



GAGE COUNTY GIS / PROPERTY RECORD LOOKUP

<https://report.gworks.com/report.ashx?county=gage&type=assessor>



GAGE COUNTY SALES COMPARISON MAP

<https://experience.arcgis.com/experience/67492767fb8d49a8b321d14022d24e81>



NEBRASKA PROPERTY VALUATION PROTEST FORM 422

https://revenue.nebraska.gov/sites/default/files/doc/pad/forms/422_Property_Valuation_Protest.pdf



Guidance note: This guide is general educational guidance. It is not an appraisal and not a guarantee of any outcome. Local deadlines, filing rules, hearing procedures, and Board decisions still control.

AFTER THE HEARING

If the first packet was not enough

If your initial submission did not include enough evidence to support the adjustment you requested, that does not necessarily mean the conversation is over.

For a regular real property valuation protest, June 30 is the statutory filing cutoff. The official Nebraska Form 422 instructions say the protest must be filed after the assessment roll is complete and on or before June 30. A later hearing date does not create a new filing window for a first protest.

The Board of Equalization can only act on the information in front of it. If you already filed by the applicable deadline and later gather stronger comparable properties, obtain additional documentation, or discover something in your property record that supports a specific correction, ask the County Clerk's Office whether those materials can still be submitted for the existing protest.



The next scheduled property protest hearings of the Gage County Board of Equalization are:

Gage County Courthouse, 612 Grant Street, Beatrice, NE 68310

Wednesday, June 24, 2026

1:00 p.m.

Monday, July 6, 2026

1:00 p.m.

[assets/calendar/gage-boe-2026-07-06.ics](#)

Wednesday, July 8, 2026

1:00 p.m.

[assets/calendar/gage-boe-2026-07-08.ics](#)

Monday, July 20, 2026

1:00 p.m.

[assets/calendar/gage-boe-2026-07-20.ics](#)

Wednesday, July 22, 2026

1:00 p.m.

[assets/calendar/gage-boe-2026-07-22.ics](#)

These dates are hearing sessions, not filing deadlines.

Sometimes the most productive outcome from an early hearing is not an immediate adjustment. It is learning exactly what evidence the Board needs to evaluate your request.

SOURCE

Board decision and appeal authorities

County board decision statute and TERC appeal statute

Used to identify what can happen after the hearing and where the next review path comes from.

A protest can improve the record

A protest is not an attack on the assessment system. At its best, it is one of the final quality-control steps before the assessment roll becomes final.

The homeowner may be the only person in the room who has lived with the property closely enough to notice the small mistake: the old outbuilding, the wrong fireplace count, the basement finish that was never completed, the condition rating that no longer fits.

Better records produce better models. Better models produce more uniform assessments. More uniform assessments reduce the need for future protests.

Accuracy compounds.

SOURCE

Uniformity and real property regulation anchors

Nebraska constitutional uniformity requirement and Title 350 real property regulations

Used to connect the closing principle back to uniform, proportionate treatment and record-based valuation review.

Continue Exploring

Can't get enough longform reading about property assessments? Extremely relatable.

Read the companion case study:

Assessment Up. Protest Denied. Taxes?

RESOURCES

Resources and authorities

This guide is based on Nebraska property tax law, Nebraska Department of Revenue Property Assessment Division regulations, and generally accepted assessment guidance.

LEGAL AUTHORITY

CONSTITUTIONAL **Nebraska Constitution, Article VIII, § 1** (<https://nebraskalegislature.gov/laws/articles.php?article=VIII-1>)
Nebraska Legislature · Nebraska
Neb. Const. art. VIII, § 1
Uniform and proportionate taxation.
<https://nebraskalegislature.gov/laws/articles.php?article=VIII-1>

STATUTES **Nebraska Revised Statutes, Chapter 77** (<https://nebraskalegislature.gov/laws/browse-chapters.php?chapter=77>)
Nebraska Legislature · Nebraska
Property valuation, assessment, equalization, protest, and appeal procedures.
<https://nebraskalegislature.gov/laws/browse-chapters.php?chapter=77>

ADMINISTRATIVE REGULATIONS **Title 350, Nebraska Administrative Code, Chapter 10** (<https://revenue.nebraska.gov/about/legal-information/regulations/chapter-10-real-property>)
Nebraska Department of Revenue, Property Assessment Division · Nebraska
Real property regulations and protest procedure context.
<https://revenue.nebraska.gov/about/legal-information/regulations/chapter-10-real-property>

ASSESSMENT GUIDANCE

ASSESSMENT GUIDANCE **IAAO Course 101, Fundamentals of Real Property Appraisal**
International Association of Assessing Officers
Sales comparison, cost approach, depreciation, and appraisal process guidance.

PAD REPORTS **Nebraska Property Assessment Division Reports & Opinions**
Nebraska Department of Revenue, Property Assessment Division
Used as assessment-practice context, not as controlling legal authority.

OFFICIAL READER RESOURCES

COUNTY RECORD LOOKUP **Gage County GIS / Property Record Lookup** (<https://report.gworks.com/report.ashx?county=gage&type=assessor>)
Gage County Assessor · Gage County
Find the property record card for your parcel and comparable properties.
<https://report.gworks.com/report.ashx?county=gage&type=assessor>

COUNTY MAP **Gage County Sales Comparison Map** (<https://experience.arcgis.com/experience/67492767fb8d49a8b321d14022d24e81>)
Gage County Assessor · Gage County
Find recent sales context for comparison research.
<https://experience.arcgis.com/experience/67492767fb8d49a8b321d14022d24e81>

Nebraska Property Valuation Protest Form 422

(https://revenue.nebraska.gov/sites/default/files/doc/pad/forms/422_Property_Valuation_Protest.pdf)

Nebraska Department of Revenue, Property Assessment Division · Nebraska

Official property valuation protest form.

https://revenue.nebraska.gov/sites/default/files/doc/pad/forms/422_Property_Valuation_Protest.pdf